

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

DONNA LEWIS,

Plaintiff

- and -

THE CITY OF TORONTO,

Defendant

)
)
) *Gerald Sternberg*, for the Plaintiff
)
)
)

)
)
)
) *Avril Allen & Stuart Forbes*, for the
) Defendant
)
)

) **HEARD:** October 12, 13 & 14 , 2004,
) at Toronto, Ontario

McCartney J.

Reasons For Judgment

[1] This is an action by the Plaintiff against the Defendant municipal corporation for damages for personal injuries suffered by her as the consequence of slip and fall on a City owned sidewalk. Quantum of damages have been agreed upon, thus liability is the only issue to be decided.

[2] The facts are as follows:

(1) On November 11, 2002, at about 4:15 p.m. the Plaintiff, a 55 year old woman, who resides at 222 Garden Avenue, in the City of Toronto, was walking in a westerly direction along the sidewalk on the north side of Garden Avenue with her husband. The Plaintiff was on the inside, her husband on the curb side. As they passed 224 Garden Avenue, the Plaintiff slipped and fell on what she described as wet, decaying leaves on the sidewalk, injuring her upper right arm and shoulder. The leaves along Garden Avenue are very thick in the fall, and in fact one of the reasons for this is a large elm tree on the City property in front of the Plaintiff's home.

(2) The weather in Toronto during October and November 2002 was typical fall weather, and quite changeable. On November 10 there were wind gusts up to 50 kilometer per hour and on November 10 there were heavy rains. Approximately one inch of rain fell on Toronto on that day.

[3] The City of Toronto has two systems for cleaning up fallen leaves, one for streets and one for sidewalks. With respect to streets, the City in fact attends with heavy equipment – sweepers, trucks, compactors manual crews and the like – to keep the streets clean. The City cleans the streets because the leaves tend to clog the storm sewers and because children playing in them can create safety hazards.

[4] With respect to sidewalks, there is a by-law which requires property owners to clean the leaves from the City sidewalks in front of their property. These leaves can then be bagged, and the City will haul them away. If there is a complaint that someone is not obeying the by-law, the

City either goes after the property owner to obey the law or does the cleanup itself and charges the property owner responsible.

[5] In addition the City is divided into districts (North, South, East, West), the districts are divided into areas, and the areas are further divided into beats. In the South District, where Garden Avenue is located, there were 12 areas each divided into 12 beats. Each area has a foot patroller who looks for and reports hazzards. The patroller in the area, Louis Melo, testified that each of his 12 beats had about 15 kilometers of walking surface to cover. Melo testified it took him about two days to walk one beat, even though a healthier person could do it in one day. Prior to the accident, Melo was on Garden Avenue on August 6 and 7 and October 7 and 8, but there was nothing reported as amiss by him at those times.

The Law:

[6] The law with which we are concerned is found in s. 284 of the *Municipal Act*, since amended, which read as follows:

284. (1) Maintenance of roads and bridges - The council of the corporation that has jurisdiction over a highway or bridge shall keep it in a state of repair that is reasonable in light of all the circumstances, including the character and location of the highway or bridge.

(1.1) Liability – In case of default, the corporation, subject to the *Negligence Act*, is liable for all damages any person sustains because of the default.

(1.2) Defence – The corporation is not liable under subsection (1) or (1.1) for failing to keep a highway or bridge in a reasonable state of repair if it did not know and could not reasonably have been expected to know about the state of repair of the highway or bridge.

(1.3) Same - The corporation is not liable under subsection (1) or (1.1) for failing to keep a highway or bridge in a reasonable state of repair if it took reasonable steps to prevent the default from arising.

The Position of the Parties:

A. The Position of the Plaintiff:

[7] The Plaintiff says that decaying leaves had been present in front of 224 Garden Avenue for two to three weeks and that by November 11 the leaves were mostly off the trees. The heavy rains the day before had brought many fresh leaves down which covered the decaying ones.

[8] The Plaintiff says that the City is liable for failure to have a system, or an adequate system, in place for removing leaves from sidewalks. At the very least, during the heavy leaf season, the Defendant should have been inspecting the sidewalk, especially in windy wet weather, but the most they ever did was eyeball the situation. Furthermore, the City's patrol system was defective in that Louis Melo, the patroller in the area, was last on Garden Avenue on October 7 and 8 - a month before the Plaintiff's accident.

B. The Position of the Defendant:

[9] The Defendant says that the evidence shows that in November 2002 there was no significant build up of leaves prior to the accident on November 11. The City did not start its leaf removal program on the streets in earnest until November 15. The winds were very much stronger in November than October, a very heavy rainfall had occurred the day before the accident, and the photo exhibits show many leaves still on the trees after the accident. This

would also mean, of course, that the leaves would not have had sufficient time to decompose, so that if the sidewalks were slippery, it was because they were wet from the heavy rains not from decomposing leaves.

[10] The Defendant points out that the system in place (i.e. residents cleaning up the leaves with patrollers checking on a regular basis for hazards) is a very good system, that the Plaintiff was aware of it, and that the Plaintiff often walked along this sidewalk without incident. She further indicates that she had been warned by her daughter that the sidewalk in question was slippery, but she had done nothing about this situation, such as reporting it to the City. The Defendant also points out that on the date in question the alleged decaying slippery leaves were, according to the Plaintiff, hidden, being covered by fresh fallen leaves, due to the heavy rains and windy conditions the day before. The Defendant, therefore, takes the position that under the circumstances the City should not be found liable for the Plaintiff's injuries.

Discussion:

[11] Under s. 284. (1) of the *Municipal Act* mentioned above, the Plaintiff has the onus of proving on a balance of probabilities that the sidewalk is not in a reasonable state of repair "in light of the circumstances" and that the lack of repair caused her injuries. If the Plaintiff satisfies this onus, the onus then shifts to the Defendant to prove either (a) it did not know or could not reasonably be expected to know of the non-repair or (b) the Defendant had taken reasonable steps to prevent the non-repair (i.e. a proper maintenance system working and in place).

[12] In *Cole v. Deep River (Town)*, [2003] O.J. No. 583 (S.C.J.), decided by this court in February of 2003, the court considered the responsibility of municipalities in situations such as the present case. There a pedestrian, who slipped and fell on a municipal sidewalk alleged that the municipality was responsible in that it had left sand, which had been applied to winter ice, to remain on the sidewalk into the spring. The approach taken by the trial judge in that case is, in my opinion, the correct approach to take in cases of this nature and is set out as follows:

95 There is no serious dispute between the parties concerning the appropriate legal standard of care on the Defendant. Section 284 of the Municipal Act, in the circumstances of this case, requires a municipality to keep its streets, bridges, or sidewalks, (including sidewalk ramps) “in repair”. In the event that it fails to meet its duty and where such failure is the cause of an injury, a municipality becomes liable to the injured party.

96 The extent of this duty of care must, in my opinion, be determined in the context of weather and related conditions to which Canadian Citizens are, and can expect to be, exposed. Any adult person familiar with Canadian weather knows, or should know, that walking on sidewalks, ramps, or streets can and may be dangerous, especially in winter and spring conditions. The statute does not impose strict liability on the municipality.

...

99 A trip, slip, or fall on a sidewalk or ramp that is covered with sand, does not automatically warrant a finding that a municipality has failed to meet its statutory duty to keep them in repair. A municipality cannot be expected to eliminate each and every condition that might possibly contribute to the possibility of someone slipping, tripping, or falling. The streets, sidewalks and ramps must be maintained and kept in a state of repair that will ensure they are safe for use by pedestrians. Pedestrians too must also make reasonable use of them. It is common knowledge that sand can reduce friction (where ice is not involved). Mrs. Cole was well aware of such a risk. However, unfortunately, on March 23, 1995 she ignored this risk.

...

102 In the circumstances of this case, it would be unreasonable to find that the Defendant was tardy in failing to clean the accumulated sand from the ramp since it had no notice whatsoever that there was anything unusual about the ramp.

[13] After a careful review of all the evidence, I find that the Plaintiff has failed to prove that the sidewalk was not in a reasonable state of repair. There was no evidence to establish any problem with the sidewalk proper. It was clear to me, from the testimony of Ross Carnovale, and the City records, that leaves did not start to fall and collect in very large numbers until after the accident. This is also clear from the photographic exhibits, showing the amount of leaves on the sidewalks and streets and left on the trees the day after the accident. The weather records, and the testimony of the Plaintiff herself, indicate heavy rains and winds the day before the accident (November 10), which not only caused a considerable number of new leaves to fall, but also wet down the fallen leaves, and this condition would also leave the surface under the leaves wet and slippery as well. Further the Plaintiff confirms that she was not aware of any accidents on the sidewalk prior to November 11. The evidence presented leads to the conclusion that the slippery condition on the sidewalk, as explained by the Plaintiff, was due to a combination of decaying leaves, fresh fallen leaves due to very windy conditions, and recent heavy rains, all of which caused the sidewalk to become slippery. I am unable to conclude, in light of all of these circumstances, that the Plaintiff has proved on a balance of probabilities that the state of repair of the sidewalk should be considered unreasonable.

[14] If I am wrong in my conclusion that the condition of the sidewalk did not constitute non-repair, I am also of the opinion that the Defendant has satisfactorily established that it did not

know, nor should it have been reasonably expected to know the condition of the sidewalk, for the following reasons:

- (a) the Plaintiff herself indicated that the slippery leaves were hidden by freshly fallen leaves;
- (b) the Plaintiff had often walked over this same section of sidewalk without incident;
- (c) there was not a significant buildup of leaves in the area in question;
- (d) the City was entitled to put some reliance on the by-law whereby citizens were to clean up the leaves themselves;
- (e) the heavy rains and winds the day before clearly left new moisture and leaves on the sidewalk on the day in question which the City could not be expected to react to instantly; and
- (f) City workers on location (i.e. Daniel Polland, the Supervisor of Patrollers, Ross Carnovale, the superintendent of Works and Emergency Services, Manuel Maderios, who was cleaning leaves on the street on Garden Avenue on October 31, 2002, and Louis Melo, the patroller in the area), all with years of on-the-job experience regarding leaves and leaf removal in the City of Toronto indicated that in their estimation, the small amount of leaves as demonstrated in the photographic exhibits would not normally constitute a hazard to pedestrians using the sidewalk.

[15] The most compelling reason why the Plaintiff should not succeed is found in the testimony of the Plaintiff herself. There she makes it quite clear that she was not only in a better position than the Defendant to know of the danger, but she, in fact, did know about it, and consequently may well have been the cause of her own misfortune in that she did not exercise sufficient caution to protect herself. In this regard pages 53 to 57 of the transcript of her testimony are revealing, and read as follows:

Q. Do you recall when was the last time you had walked over that area where you fell that afternoon?

A. I hadn't walked that way for quite a while, probably a week, ten days because I had been attending to the Harbourfront and had been taxiing back and forth.

Q. When you went to Harbourfront you normally took a taxi to and fro?

A. Yes.

Q. Did you go out for walks with our dog if you had a dog?

A. We did have a dog but she was too old to walk at that point.

Q. I have a 17 year old dog at home, we take her out four times a day. Do you normally work at Harbourfront as opposed to the warehouse?

A. That was how it was, yes.

Q. Your husband went to the warehouse?

A. Yes.

Q. By November of 2002 had he been diagnosed with cancer?

A. No, not until December.

Q. So you think then your answer is within a week to ten days?

A. Ten days, yes.

Q. What did you observe at that time, first of all, did you slip and fall?

A. No. I didn't slip and fall and I observed the regular amount of leaves on the sidewalk.

Q. Had you ever slipped and fallen before that day, November 11th, 2002?

A. No.

Q. With what frequency had you walked across that area, say earlier October, November, across that area which is after all the house next to you, right?

A. It's really hard to tell. I live there so I am sure I walked across it a couple of times but I – generally we had been very busy up until that period and I had been going right to work and coming right from work. Alan was doing most of the grocery shopping and that kind of thing.

Q. Were you concerned that the leaves in front of your neighbour's house on the sidewalk were some type of a dangerous situation?

A. It is an ongoing concern, yes.

Q. You indicated you never complained to the City?

A. I didn't realize that I should complain to the City. I thought it was the neighbour's responsibility.

Q. Were you on good terms with your neighbour?

A. Yes.

Q. What is the neighbour's name?

A. George.

Q. Did you ever complain to George and say, 'George, why don't you clean those leaves off your sidewalk'?

A. No. I have never complained to George.

- Q. Any reason for that?
- A. I didn't think he would receive it well.
- Q. Did you daughter say anything to you before this accident, warning you in some fashion about the leaves being dangerous?
- A. I do recall that she mentioned it was slippery one day when she came in.
- Q. Anything else she said that evening?
- A. Pardon me?
- Q. That was about the sum and substance of it?
- A. That the leaves were slippery. I believe she said that she had almost fallen.
- Q. That didn't prompt a call to the City or to George by you?
- A. No.
- Q. That day as you walked in a westerly direction with your husband were you side by side?
- A. Yes.
- Q. He on your right or your left?
- A. He was on the curb side so that was my left.
- Q. As you were walking along were you keeping in mind that there was this area in front of George's house where there was some leaves?
- A. Yes. I was very careful. I just couldn't keep my footing. My feet just came out from under me.

[16] The Defendant also pleads it is protected from liability by s. 284 (1.3) of the *Municipal Act*. The idea of combining the resources of the citizens on location and the municipality in

keeping the sidewalk free of leaves is most reasonable, and in all likelihood much more efficient, and enormously less costly, than the municipality doing it on its own. However, the other part of the system, that being the patrollers out on their daily routes looking for safety hazards, and having them corrected as necessary, is of course critical to the system. Here the evidence shows that if the system was working as planned, a patroller would check each of his beats once every 12 working days, which would seem to be a very reasonable time frame. For reasons which are not entirely clear, Garden Avenue was patrolled on August 8, 2002, and October 8, 2002 (a two month period) and then not again until January 6, 2003, (a three month period). While I am not saying that this accident could have been avoided if patrolling had been according to the schedule outlined, a system of repair, as anticipated by s. 284. (1.3) of the *Municipal Act* must be in reasonable working order itself in order to take advantage of the protection afforded by this section. It is not clear that this was the case here.

Conclusion On Liability:

[17] For all of the above reasons, I find that the Defendant is not liable to the Plaintiff for the damages suffered by her, and the Plaintiff's claim is dismissed.

Damages:

[18] The parties have not only agreed on the quantum of the Plaintiff's damages but have provided me with a good deal of evidence which would support their conclusions, in which I concur. The Plaintiff's damages are therefore assessed as follows:

General damages for pain and suffering

\$60,000.00

Pecuniary or Special Damages	20,000.00
------------------------------	-----------

OHIP Subrogated claim	<u>3,029.01</u>
-----------------------	-----------------

Total Damages	<u><u>\$83,029.01</u></u>
---------------	---------------------------

Costs:

[19] The parties may speak to me regarding costs, if necessary, within the next 15 days.

The Hon. Mr. Justice J. F. McCartney

Released: November 18, 2004

COURT FILE NO.: 03-CV-243574SR

DATE: 2004-11-18

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

DONNA LEWIS,

Plaintiff

- and -

THE CITY OF TORONTO,

Defendant

REASONS FOR JUDGMENT

McCartney J.

Released: November 18, 2004

/mls